

# NONCOMPETITION AGREEMENT

This Noncompetition Agreement (this “Agreement”) is entered into as of August 5, 2024 (the “Effective Date”), by and between Ardsleigh Capital Management LLC, a New Jersey limited liability company with its principal place of business at 40 Exchange Plaza, Suite 1100, Morristown, New Jersey 07960 (the “Company”), and Theo Voss, an individual residing in the State of New Jersey (“Employee”). The Company and Employee are sometimes referred to individually as a “Party” and collectively as the “Parties.”

## RECITALS

WHEREAS, the Company is engaged in the business of providing asset management services, including the design, implementation, and operation of quantitative and systematic investment strategies for institutional and other sophisticated clients;

WHEREAS, the Company is employing Employee, or continuing to employ Employee, in the position of Head of Quantitative Research, a position of substantial trust in which Employee will have access to and will develop the Company’s trade secrets, proprietary research, quantitative models, investment strategies, and confidential client and business information, and will help build and maintain the Company’s relationships with its clients and counterparties;

WHEREAS, the Company has invested, and will continue to invest, substantial time, resources, and expense in developing the trade secrets, confidential information, client relationships, and goodwill described above, and considers those assets to constitute legitimate business interests that warrant protection through the restrictive covenants set forth in this Agreement;

WHEREAS, in exchange for Employee’s agreement to be bound by the restrictive covenants in this Agreement, the Company is providing Employee with access to its Confidential Information, an offer or continuation of employment in the position described above, and the garden leave and post-employment compensation described in Article VI below, each of which the Parties acknowledge and agree constitutes good and sufficient consideration for Employee’s obligations under this Agreement; and

WHEREAS, the Parties acknowledge that the restrictions set forth in this Agreement are reasonable in scope and are appropriately calibrated to the

seniority of Employee's position, the sensitivity of the information to which Employee has access, and the fact that the Company will continue to compensate Employee throughout the Restricted Period, as further described in Article VI.

NOW, THEREFORE, in consideration of the mutual covenants set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows.

## ARTICLE I — DEFINITIONS

Section 1.1. "Company" means Ardsleigh Capital Management LLC, together with its subsidiaries and affiliates.

Section 1.2. "Confidential Information" has the meaning given in Section 3.1.

Section 1.3. "Restricted Period" means the period of Employee's employment with the Company, plus the twelve (12) month period immediately following the termination of that employment for any reason, whether such termination is initiated by the Company or by Employee, and whether with or without Cause.

Section 1.4. "Territory" means the United States of America, without further geographic limitation.

Section 1.5. "Competing Business" means any person, firm, corporation, partnership, limited liability company, investment adviser, hedge fund, proprietary trading firm, or other entity that designs, develops, markets, or operates quantitative or systematic investment strategies, or otherwise provides asset management services, in actual or potential competition with the strategies operated or under active development by the Company as of the date Employee's employment terminates.

Section 1.6. "Cause" means Employee's conviction of, or plea of guilty or no contest to, a felony; Employee's willful and continued failure to perform the material duties of Employee's position after written notice and a reasonable opportunity to cure; or Employee's material breach of this Agreement or of the Company's written policies applicable to Employee's position.

## ARTICLE II — POSITION AND DUTIES

Section 2.1. Position. The Company employs Employee, and Employee accepts employment, in the position of Head of Quantitative Research, reporting to the Company's Chief Investment Officer or such other officer as the Company may designate.

Section 2.2. Duties. Employee shall devote substantially all of Employee's business time, attention, and best efforts to the performance of Employee's duties for the Company, which include the design, testing, implementation, and oversight of quantitative investment strategies, supervision of the Company's quantitative research staff, and such other duties consistent with Employee's position as the Company may from time to time assign.

Section 2.3. Access to Confidential Information. The Parties acknowledge that Employee's duties under this Article II will necessarily require Employee to have broad access to the Confidential Information described in Article III, including the Company's proprietary quantitative models, research methodologies, and client and counterparty information, and that this access is a central reason the restrictions in this Agreement are reasonable and necessary.

## ARTICLE III — CONFIDENTIALITY

Section 3.1. Confidentiality and Trade Secrets. Employee acknowledges that, in the course of employment with the Company, Employee will have access to and may create Confidential Information, and Employee agrees to hold all Confidential Information in strict confidence and not to use or disclose any Confidential Information except as required in the good-faith performance of Employee's duties for the Company. "Confidential Information" means all non-public information relating to the Company's business, including without limitation customer lists and customer data, pricing and cost information, business and marketing plans, financial information, product designs and specifications, research and development materials, supplier and vendor information, personnel information, software, know-how, and any other information that derives independent economic value from not being generally known to, and not being readily ascertainable by proper means by, other persons who can obtain economic value from its disclosure or use, together with all trade secrets as that term is understood under applicable law. Employee's obligations under this Section survive termination of employment for any reason and continue for so long as the information in question retains the character of Confidential Information or a trade secret, without limitation as to time for trade secrets. Upon termination of employment, or at any earlier time upon the Company's request, Employee shall return or destroy all documents, files, and other materials, in whatever form, containing or reflecting any Confidential Information.

## ARTICLE IV — NONCOMPETITION

Section 4.1. Restriction. In consideration of the compensation described in Article VI, and in recognition of the legitimate business interests described in the Recitals above, Employee agrees that, during the Restricted Period, Employee shall not, directly or indirectly, within the Territory, engage or participate in, provide services to, be employed by, consult for, act as an officer, director, member, partner, or trustee of, or otherwise render services of any kind, whether as an employee, independent contractor, consultant, or in any other capacity, to any Competing Business, where those services are the same as or substantially similar to the services Employee provided to the Company, or would otherwise involve the use or likely use of the Confidential Information described in Article III.

Section 4.2. Scope Acknowledgment. Employee acknowledges that, because Employee's role encompasses the design and oversight of the Company's quantitative strategies across all of the markets and instruments in which the Company trades, a restriction defined by reference to the Company's actual and prospective competitors across the Territory, rather than by reference to a narrower list of named competitors or a smaller geographic area, is reasonably necessary to protect the Company's legitimate business interests, and that this restriction is offset by the compensation described in Article VI, which will continue throughout the Restricted Period.

Section 4.3. Passive Investments Excluded. Nothing in this Article IV shall prohibit Employee from owning, solely as a passive investment, securities of any publicly traded Competing Business, provided that Employee's aggregate direct and indirect ownership does not exceed two percent (2%) of any class of the outstanding securities of such entity and Employee has no active participation in the management or operations of that entity.

## ARTICLE V — NON-SOLICITATION OF EMPLOYEES

Section 5.1. Non-Solicitation of Employees. During employment and for a period of twelve (12) months following the termination of Employee's employment for any reason, Employee shall not, directly or indirectly, solicit, recruit, or induce, or attempt to solicit, recruit, or induce, any employee of the Company to terminate his or her employment with the Company, or to accept employment with any other person or entity, nor shall Employee hire or engage, or assist any other person or entity in hiring or engaging, any person who was an employee of the Company at any time during the six (6) months preceding the termination of Employee's employment. This Section applies only to employees with whom

Employee had contact, about whom Employee obtained Confidential Information, or whom Employee supervised, in each case during the last twelve (12) months of Employee's employment with the Company.

## ARTICLE VI — GARDEN LEAVE AND POST-EMPLOYMENT COMPENSATION

Section 6.1. Garden Leave. The Company may, in its discretion, place Employee on garden leave for up to ninety (90) days following notice of termination of employment by either party, during which time Employee shall continue to receive base salary and benefits but shall not be required or permitted to perform any duties for the Company, shall not accept other employment, and shall remain bound by all restrictive covenants in this Agreement. Any period of garden leave shall run concurrently with, and shall not extend, the post-employment restricted period described elsewhere in this Agreement.

Section 6.2. Post-Employment Restricted Period Compensation. In addition to, and following the conclusion of, any period of garden leave under Section 6.1, and as further consideration for the covenants in Article IV, the Company shall continue to pay Employee for the remainder of the Restricted Period following the termination of Employee's employment, on the following terms:

- (a) Rate. Payments shall be calculated at a rate equal to Employee's annual base salary rate in effect immediately prior to the termination of employment, exclusive of any bonus, incentive compensation, or equity awards, divided into installments payable in accordance with the Company's regular payroll schedule.
- (b) Timing. Payments shall commence on the first regular Company payroll date following the expiration of any garden leave period under Section 6.1, or, if the Company does not exercise its discretion to impose garden leave, on the first regular payroll date following the date Employee's employment terminates, and shall continue through the last day of the Restricted Period, subject to standard payroll withholdings and deductions.
- (c) Events Terminating Payment. The Company's obligation to make payments under this Section 6.2 shall cease, and the Company may recover any amounts already paid with respect to any period of noncompliance, upon the earliest of: (i) Employee's material breach of Article IV or Article V of this Agreement, following five (5) business days' written notice to Employee and an opportunity to cure where the breach is capable of cure;

(ii) Employee's death, provided that any amount accrued and unpaid through the date of death shall be paid to Employee's estate; or (iii) the expiration of the Restricted Period.

(d) Other Employment During the Restricted Period. Employee may accept other employment or engage in other business activity during the Restricted Period that does not violate Article IV, and the Company's payment obligations under this Section 6.2 shall continue in full, without offset, deduction, or reduction on account of any compensation Employee earns from such other, non-competing employment or activity, provided that Employee gives the Company prompt written notice of the identity of any such other employer or business and Employee's role with it, so that the Company may confirm the engagement does not constitute a Competing Business under Article IV.

## ARTICLE VII — RETURN OF COMPANY PROPERTY

Section 7.1. Return of Company Property. Upon termination of employment for any reason, or at any earlier time upon the Company's request, Employee shall promptly return to the Company all property belonging to the Company, including without limitation all documents, files, records, computers, mobile devices, access cards, keys, and any other equipment or materials, together with all copies thereof, in whatever medium, and shall not retain any copies, extracts, or summaries of any of the foregoing.

## ARTICLE VIII — NON-DISPARAGEMENT

Section 8.1. Non-Disparagement. Employee agrees not to make any statement, oral or written, that disparages or is reasonably likely to damage the business reputation or goodwill of the Company, its products, or its officers, directors, or employees, except as required by law or in connection with a good-faith report to, or testimony before, a governmental agency or in a legal proceeding.

## ARTICLE IX — SEVERABILITY; REFORMATION; LEGITIMATE BUSINESS INTEREST

Section 9.1. The parties agree that the restrictions in this Agreement are reasonable and necessary to protect the Company's legitimate business interests, including its confidential information, customer relationships, and goodwill, and are reasonably limited in time, geography, and scope to protect those interests without imposing an undue hardship on Employee or injuring the public. If,

notwithstanding the foregoing, any restriction is found by a court to exceed what is reasonably necessary to protect the Company's legitimate business interests, the parties agree that the court shall reform the restriction to the maximum time, geographic, and scope limitations that the court determines are reasonable and necessary to protect those interests, and shall enforce the restriction as reformed. The invalidity or unenforceability of any provision of this Agreement shall not affect the validity or enforceability of any other provision.

## ARTICLE X — GOVERNING LAW

Section 10.1. Governing Law. This Agreement shall be governed by, and construed in accordance with, the laws of the State of New Jersey, without regard to principles of conflicts of law.

## ARTICLE XI — ATTORNEYS' FEES

Section 11.1. Attorneys' Fees. In any action to enforce the restrictive covenants in this Agreement, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs from the non-prevailing party, in addition to any other relief to which it may be entitled.

## ARTICLE XII — ASSIGNMENT; SUCCESSORS

Section 12.1. Assignment; Successors. The Company may assign this Agreement, without Employee's consent, to any successor to all or substantially all of the business or assets of the Company, whether by merger, sale of assets, or otherwise, and this Agreement shall inure to the benefit of and be binding upon any such successor or assign. Employee may not assign this Agreement or any rights or obligations under it.

## ARTICLE XIII — WAIVER OF JURY TRIAL

Section 13.1. Waiver of Jury Trial. Each party irrevocably waives, to the fullest extent permitted by applicable law, any right to a trial by jury in any action, proceeding, or counterclaim arising out of or relating to this Agreement.

## ARTICLE XIV — MISCELLANEOUS

Section 14.1. Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. A signature transmitted by electronic means shall be treated as an original signature for all purposes.



Section 14.2. Headings. The Article and Section headings in this Agreement are for convenience of reference only and shall not affect the interpretation of this Agreement.

Section 14.3. Acknowledgment. Employee acknowledges that Employee has had the opportunity to consult with independent counsel of Employee's choosing prior to signing this Agreement, that Employee has carefully read and considered the provisions of this Agreement, and that, having done so, Employee agrees that the restrictions set forth in this Agreement are fair and reasonable given, among other things, the compensation Employee will receive under Article VI during the Restricted Period.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date first written above.

**ARDSLEIGH CAPITAL MANAGEMENT LLC**

By: \_\_\_\_\_ Name: Renata Sloane Title: Chief Executive Officer Date: August 5, 2024

**EMPLOYEE**

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Theo Voss Title: Head of Quantitative Research Date: August 5, 2024